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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
18/288,346	10/25/2023	Shujen YU	MILA.001A	9319

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EXAMINER	
DEERY, ERIN LEAH	

ART UNIT	PAPER NUMBER
3754	

NOTIFICATION DATE	DELIVERY MODE
10/20/2026	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

scottyu@mila-international.com

Office Action Summary	Application No. 18/288,346	Applicant(s) YU, Shujen	
	Examiner ERIN L DEERY	Art Unit 3754	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 8/10/26.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-3,6-7 and 9-15 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☑ Claim(s) 10-15 is/are allowed.

7) ☑ Claim(s) 1-3,6-7 and 9 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☐ The drawing(s) filed on _____ is/are: a)☐ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☐ Notice of References Cited (PTO-892)

2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Continued Examination Under 37 CFR 1.114

1. A request for continued examination under 37 CFR 1.114, including the fee set forth in 37 CFR 1.17(e), was filed in this application after final rejection. Since this application is eligible for continued examination under 37 CFR 1.114, and the fee set forth in 37 CFR 1.17(e) has been timely paid, the finality of the previous Office action has been withdrawn pursuant to 37 CFR 1.114. Applicant's submission filed on 8/10/26 has been entered.

2. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

3. The text of those sections of Title 35, U.S. Code not included in this action can be found in a prior Office action.

Claim Objections

4. **Claim 7 is objected** to because of the following informalities: applicant is advised to delete "the first elongated rail, the second elongated rail," in lines 1 and 2 since parent claim already sets forth that those elongated rails are triangular. Appropriate correction is required.

Claim Rejections - 35 USC § 112

5. The following is a quotation of the first paragraph of 35 U.S.C. 112(a):

> (a) IN GENERAL.—The specification shall contain a written description of the invention, and of the manner and process of making and using it, in such full, clear, concise, and exact terms as to enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the same, and shall set forth the best mode contemplated by the inventor or joint inventor of carrying out the invention.

The following is a quotation of the first paragraph of pre-AIA 35 U.S.C. 112:

> The specification shall contain a written description of the invention, and of the manner and process of making and using it, in such full, clear, concise, and exact terms as to enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the same, and shall set forth the best mode contemplated by the inventor of carrying out his invention.

6. **Claims 1 - 3, 6, 7, and 9 are rejected under 35 U.S.C. 112(a) or 35 U.S.C. 112 (pre-AIA), first paragraph**, as failing to comply with the written description requirement. The claim(s) contains subject matter which was not described in the specification in such a way as to reasonably convey to one skilled in the relevant art that the inventor or a joint inventor, or for applications subject to pre-AIA 35 U.S.C. 112, the inventor(s), at the time the application was filed, had possession of the claimed invention. Claim 1 recites that a top surface is oriented at "approximately 45 degrees" relative to the horizontal. "Approximately" does not find support in the originally filed disclosure. Applicant has not pointed out where the new (or amended) claim is supported, nor does there appear to be a written description of the claim limitation in the application as filed. See MPEP 2163(II)(A).

7. The remaining claims are indefinite insofar as they depend from rejected based claims.

8. The following is a quotation of 35 U.S.C. 112(b):

> (b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:

> The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

9. **Claims 1 - 3, 6, 7, and 9 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph**, as being indefinite for failing to particularly point out and

distinctly claim the subject matter which the inventor or a joint inventor (or for applications subject to pre-AIA 35 U.S.C. 112, the applicant), regards as the invention.

10. Regarding claim 1:

a. In line 18, applicant recites "a triangular cross-sectional shape" of the first and second elongated rail. Applicant previously recites, in line 10, that the rails are "triangular in cross section." Accordingly, it is unclear how applicant is attempting to further define the shape of the rail, or if the newly claimed cross-sectional shape is somehow in addition to the previously recited one.

b. In line 18, applicant recites "a top surface"; in line 19 applicant recites "a closed back surface." However, in lines 11, 13, and 14, applicant various recites first, second, and third surfaces and their relative inclinations and sizes. It is not clear if "a top surface" and "a closed back surface" is meant to reference any of the first through third surfaces as set forth previously. If not, it is unclear how something can have a triangular cross section and have 5 different surfaces. It is assumed, based on the disclosure, that the top surface refers to the second surface and that the back surface refers to the first surface.

c. In line 20, "a length" is a double inclusion of the length which is set forth in lines 12 - 13.

d. In lines 20 - 21, it is unclear if "a first end to a second end thereof" refers to the sidewall or to the length of the rail.

11. The remaining claims are indefinite insofar as they depend from a rejected base claim.

Allowable Subject Matter

12. Applicant's remarks have been considered and the rejection of record reconsidered. Accordingly:

Claims 10 - 15 are allowed.

Claims 1 - 3, 6, 7, and 9 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), 2nd paragraph, set forth in this Office action.

13. The following claim drafted by the examiner and considered to distinguish patentably over the art of record in this application, is presented to applicant for consideration:

Claim 1 (currently amended) A sink assembly, comprising:

a sink basin including a bottom surface having a drain and four side walls extending upward from the bottom surface, wherein a first sidewall of the four side walls is provided with a first series of spaced apart apertures and a second sidewall of the four side walls opposite to the first sidewall includes a second series of spaced apart apertures; and

a first elongated rail attached to the first sidewall by a series of connections through the first series of spaced apart apertures; and

a second elongated rail attached to the second sidewall by a series of connections through the second series of spaced apart apertures,

wherein the first elongated rail and the second elongated rail are triangular in cross section and the first elongated rail and the second elongated rail each include a first closed back surface disposed continuously against respective first and second sidewalls along an entire length of the first and second elongated rails, a second top

surface facing upward away from the bottom surface of the sink basin and a third lower surface facing downward toward the bottom surface, the second surface being at an acute angle relative to the first surface, the first surface having a first width that is greater than a second width of the second surface and a third width of the third surface, ~~wherein the first elongated rail and the second elongated rail each have: a triangular cross-sectional shape with a top~~ such that the second surface is oriented at ~~approximately~~ 45 degrees relative to horizontal[[;]] ~~a closed back surface facing the respective sidewall~~; and

the [[a]] length of the first and second rails extending substantially an entire length of the respective sidewall ~~from a first end to a second end thereof~~; and

wherein the ~~triangular~~ cross[[-]]section~~al shape~~ is configured to provide sliding engagement having reduced friction ~~sliding engagement~~ with accessories mounted thereon by minimizing overlapping contact area between the accessories and the rails.

Conclusion

14. Any inquiry concerning this communication or earlier communications from the examiner should be directed to ERIN L DEERY whose telephone number is (571)270-1928. The examiner can normally be reached on Mon - Thur, 7:30am - 4:30pm; Fri 8:00am-12:00pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice **and to authorize internet communications**.

Copies of the patent documents cited in this action may be retrieved using https://patents.google.com/ or https://worldwide.espacenet.com/ .

Applicant may access the MPEP at the following web address: https://www.uspto.gov/web/offices/pac/mpep/index.html .

Applicant is advised that the Pro Se Assistance Program can provide information and assistance with respect to your patent application and other matters. Information about the program may be found at the following web address: https://www.uspto.gov/patents/basics/using-legal-services/pro-se-assistance-program

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, David Angwin can be reached on (571) 270-3735. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/ERIN DEERY/
Primary Examiner, Art Unit 3754